

Stereo. HC JD A 38.
Judgment Sheet
**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.**
JUDICIAL DEPARTMENT

Capital Sentence Reference No.02 of 2023
(The State Vs. Muhammad Sultan)

Criminal Appeal No. 358-J of 2023
(Muhammad Sultan Vs. The State .)

Date of hearing:	29.09.2025.
Appellant by:	Mr. Zafar Iqbal Sheikh, Advocate (learned defence counsel appointed at State expense).
State by:	Mr. Muhammad Riaz, Deputy Prosecutor General.
Complainant by:	Mr. Muhammad Ishaq, Advocate.

SADIQ MAHMUD KHURRAM, J. – Muhammad Sultan son of Jind Wadda (convict) was tried by the learned Judge, Anti-Terrorism Court, Bahawalpur Division, Bahawalpur, in case F.I.R. No. 354 of 2022 dated 30.09.2022 registered at Police Station Saddar Rahim Yar Khan District Rahim Yar Khan in respect of offences under sections 302, 324,336-B, 109, 435 and 427 P.P.C. and under section 7 of the Anti-terrorism Act, 1997 for committing the *Qatl-i-Amd* of Gul Naz wife of Khursheed Ahmad (deceased), Shehnaz daughter of Khursheed Ahmad (deceased) and Basra Bibi wife of Akbar (deceased). The learned trial court vide judgment dated 27.06.2023 convicted Muhammad Sultan son of Jind Wadda (convict) and sentenced him as under:-

Muhammad Sultan son of Jind Wadda:

- i) Death under section 302(b) P.P.C.as Tazir for committing Qatl-i-Amd of Gul Naz wife of Khursheed Ahmad

(deceased) and directed to pay Rs.500,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- ii) Death under section 302(b) P.P.C.as *Tazir* for committing *Qatl-i-Amd* of Shehnaz daughter of Khursheed Ahmad (deceased) and directed to pay Rs.500,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- iii) Death under section 302(b) P.P.C.as *Tazir* for committing *Qatl-i-Amd* of Basra Bibi wife of Akbar (deceased) and directed to pay Rs.500,000/- as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- iv) Death under section 7 (a) of the Anti-terrorism Act, 1997 for committing *Qatl-i-Amd* of Gul Naz wife of Khursheed Ahmad (deceased) and directed to pay fine of Rs.200,000/- and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- v) Death under section 7 (a) of the Anti-terrorism Act, 1997 for committing *Qatl-i-Amd* of Shehnaz daughter of Khursheed Ahmad (deceased) and directed to pay fine of Rs.200,000/- and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- vi) Death under section 7 (a) of the Anti-terrorism Act, 1997 for committing *Qatl-i-Amd* of Basra Bibi wife of Akbar (deceased) and directed to pay fine of Rs.200,000/- and in case of default thereof, the convict was directed to undergo further one year of simple imprisonment.

The convict was ordered to be hanged by his neck till dead.

- vii) Rigorous imprisonment of seven years under section 435 P.P.C. and directed to pay fine of Rs.100,000/- and in

- case of default thereof, the convict was directed to undergo further six months of simple imprisonment.
- viii) Rigorous imprisonment of two years under section 427 P.P.C. and directed to pay fine of Rs.100,000/- and in case of default thereof, the convict was directed to undergo further two months of simple imprisonment.

All the sentences awarded to the convict were ordered to run concurrently by the learned trial court.

2. Feeling aggrieved, Muhammad Sultan son of Jind Wadda (convict) lodged Criminal Appeal No. 358-J of 2023 assailing his conviction and sentences. The learned trial court submitted Reference under section 374 Cr.P.C. read with section 30(2) of the Anti-terrorism Act, 1997, which has been numbered as Capital Sentence Reference No. 02 of 2023 for confirmation or otherwise of the death sentences awarded to Muhammad Sultan son of Jind Wadda (appellant). We intend to dispose of the Criminal Appeal No. 358-J of 2023 and the Capital Sentence Reference No.02 of 2023 through this single judgment.

3. Precisely, the facts necessary, as stated by Khursheed Ahmad (PW-5), the complainant of the case, are as under: -

“Stated that I am cultivator and also runs grocery shop in a house. I had got married my daughter Shehnaz with Sultan Ahmad, accused present in court, 12/13 years prior to this occurrence. Shehnaz Bibi had one daughter aged 09 year and son Aman Ullah aged 02 year from said wedlock, who are alive. About 09 months prior to occurrence Sultan Ahmad accused expelled my daughter with children from his house and she started living with me at my house. I made efforts to reconcile and after failing, my daughter filed suit of dissolution and maintenance allowance for her and her children in the court. Sultan Ahmad accused, present in court, nourished grudge and extended threats to me many times that he would kill us. On 30.9.2022, I brought medicine of my wife Gul Naaz. My sister-in-law Basra Bibi had also come at my home when at about 12:30 day time I was present at Pul Gharib shah I saw accused Sultan Ahmad going towards my house rashly having bottle of petrol in his hand. I also came towards my house behind him, My wife Gul Naaz. my daughter Shehnaz and my sister-in-law Basra Bibi were sitting in my shop and in my view accused Mohammad Sultan, present in court, threw petrol upon my wife Gul Naaz, my daughter Shehnaz and my sister-in-law Basra Bibi and set them on fire. Due to which

said ladies became burnt and fire also burnt the articles available in my shop. On my hue and cry Amjed Iqbal, Shah Raza and other neighbours also attracted there. Sultan Ahmad extended threats if anybody came near to him, he would also burn him. Accused Mohammad Sultan ran away from the spot. I and neighbours extinguished the fire. My wife Gul Naaz Bibi succumbed to the Injuries at the spot, whereas Shehnaz and Basra were seriously injured due to burn. We made call on Rescue 15. This occurrence was committed by accused Sultan Ahmad on the instigation of Mohammad Iqbal, Amir Sohail and Bilal Asghar residents of Ashraf Abad. Ghulam Farid and Mohammad Farhan informed me that today at about 10:00 am they were sitting at hotel situated at Thalli chowk where Amir Sohail, Bilal Asghar and Mohammad Iqbal were instigating their brother Mohammad Sultan to set my daughter and wife on fire and they were asked him that they would handled the matter. Mohammad Sultan committed instant occurrence on their instigation which created sense of fear and insecurity among the public. On arrival of police. I presented application Exh.PC which bears my signature Exh.PC/1 whereon instant F.I.R was registered and police investigated the case.”

4. After the formal investigation of the case report under section 173 of the Code of Criminal Procedure, 1898 was submitted before the learned trial court wherein the appellant namely Muhammad Sultan son of Jind Wadda was sent to face trial. The learned trial court framed the charge against the accused on 19.01.2023 to which the accused pleaded not guilty and claimed trial.

5. The prosecution in order to prove its case got statements of as many as **twenty three** witnesses recorded. The ocular account of the case was furnished by Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7). Sajid Raza 399/HC (PW-1) stated that on 03.10.2022, the appellant was arrested by the Investigating Officer of the case and a personal search was conducted. Muhammad Nadeem 785/HC (PW-2) stated that on 30.09.2022, the Investigating Officer of the case handed over to him sealed parcels, a motorcycle , burnt articles, sealed envelopes and on 01.10.2022, the Investigating Officer of the case handed over to him sealed boxes and sealed envelopes and on 09.10.2022, he handed over the sealed

boxes and sealed envelopes to Ejaz Hussain ASI (PW-10) for their onward transmission to Punjab Forensic Science Agency, Lahore and on 12.10.2022, the Investigating Officer of the case handed over to him a Universal Serial Bus (USB) storage device. Sajid Mahmood Hassan, ASI (PW-3) stated that on 30.09.2022, he got recorded the formal F.I.R. (Exh.PB). Faiz Alam (PW-4) stated that on 30.09.2022 at about 12.07 p.m, the appellant had purchased petroleum from him. Abu Bakar Amir (PW-19) stated that on 30.09.2022 at about 12.00/12.15 p.m., the appellant had parked his motorcycle in front of his shop. Zainab Berkat 1562/LC (PW-14) stated that on 30.09.2022 she escorted the dead body of the deceased namely Gul Naz Bibi to the hospital and received the last worn clothes of the deceased from the Medical Officer after the post mortem examination of the dead body of the deceased and on 01.10.2022, she got conducted the post mortem examinations of the dead bodies of Basra Bibi (deceased) and Shehnaz Bibi (deceased) and received the last worn clothes of the deceased from the Woman Medical Officer. Muhammad Rafique Tracer (PW-18) prepared the scaled site plan of the place of occurrence (Exh.PBB). Abdul Kareem Inspector (PW-21) investigated the case from 30.09.2022 till 03.05.2023, arrested the appellant namely Muhammad Sultan son of Jind Wadda on 03.10.2022 and detailed the facts of his investigation in his statement before the learned trial court. Muhammad Aslam, SI (PW-23) investigated the case on 30.09.2022 and detailed the facts of his investigation in his statement before the learned trial court.

6. The prosecution also got Dr. Sara Arshad (PW-11) examined, who on 30.09.2022 was posted as Woman Medical Officer at the Sheikh Zayed Hospital, Rahim Yar Khan and on the same day, conducted the post-mortem

examination of the dead body of Gul Naz wife of Khursheed Ahmad (deceased). Dr. Sara Arshad (PW-11), on examining the dead body of Gul Naz wife of Khursheed Ahmad (deceased) observed as under:-

“ A dead body of female aged approximately 50 years lying in supine position on mortuary table. The dead body was completely burnt from head to toe (100%). Due to severity of burn dead body was unidentifiable. Face was completely disfigured, body was stiff, swollen and in pugilistic attitude.

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I- DESCRIPTION OF INJURIES: (including findings on dissection)

Following injuries were noted:

Injury No.1

There was lacerated wound measuring 4 cm x 1.5 cm, bone was exposed, margin completely burnt, situated on the left side of head approaching upto frontal bone just 3.5 cm above the pinna of left ear. The underlying bone was healthy and no intracranial hemorrhage was seen in the skull. Note: This injury was not mentioned in police papers. Any bruise, laceration and mark of violence cannot be detected due to discoloration and burning of skin.

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OPINION

After thorough internal and external examination, I am of the opinion that cause of death in this case was completely burnt (100% surface area) body was sufficient to cause death in normal course of life... However samples already mentioned had been sent to various labs for final report. Final report was kept pending till the receiving of results from PFSA.

Probable time that elapsed:

(a) between injury and death: Within half an hour.

(b) between death and post mortem: Within ten hours.

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FINAL OPINION AFTER RECEIVING REPORTS FROM PFSA. After receiving and studying the above said reports, the cause of death is same which I have given earlier in my earlier opinion dated 30.9.2022, on the day of issuing postmortem examination report.”

The prosecution also got Dr. Maria Ghaffar (PW-12) examined, who on 30.09.2022 was posted as Casualty Medical Officer at the Sheikh Zayed Hospital, Rahim Yar Khan and on the same day, examined Basra Bibi (then

injured and later deceased). Dr. Maria Ghaffar (PW-12) , on examining Basra Bibi (then injured, later deceased) observed as under:-

“On examination following injuries were noted:

Injury No.1

Flame burn on all over body. On examination scalp hairs were burnt but not up to roots of hairs. Face was burn all over from front and back side.

Facial tenderness seen.

Front of chest and back of chest was burnt

Involvement of skin was of mixed thickness

Abdomen and lower back of body surface area was burnt all over.

Front and back of each leg and foot were burnt.

Genital area was also involved in flame burns

Both arms from front and back up to tip of nail was burnt.

According to rule of 9, head and neck (9%), Arms 9% each, genital area 1%, abdomen and lower back 9% each, total burn area was approximately 70% to 80%.

Probable duration of Injuries 06 hours. Injuries were caused by flame burn.

Possibility of fabrication was NIL. Injuries were kept under observation.

On 30.09.2022 , Dr. Maria Ghaffar (PW-12) also examined Shehnaz Bibi (then injured, later deceased). Dr. Maria Ghaffar (PW-12) , on examining Shehnaz Bibi (then injured, later deceased) observed as under:-

“Injury No.1

Flame burn on all over body. On examination scalp hairs intact Face was burnt all over and edema present.

Front of chest and back of chest was burnt and skin was of mixed thickness.

Abdomen and lower back of body surface area was burnt all over.

Front and back of each leg and foot were burnt.

Both arms from front and back up to tip of nail was burnt.”

The prosecution also got Dr. Amara Irum (PW-13) examined, who on 01.10.2022 was posted as Woman Medical Officer at the Sheikh Zayed Hospital, Rahim Yar Khan and on the same day, conducted the post-mortem examination of the dead body of Basra Bibi wife of Akbar (deceased). Dr. Amara Irum (PW-13), on examining the dead body of Basra Bibi wife of Akbar (deceased) observed as under:-

“I- DESCRIPTION OF INJURIES: (including findings on dissection)

Following injuries were noted:

The dead body was burnt from head to toe approximately 90% of surface area of the body, skin was discolored and peel off from multiple sides due to severe burn. so no injury bruise and mark of violence cannot be detected.

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OPINION

After conducting thorough autopsy, I am of the opinion that cause of death in this case was completely burnt (90% surface area) body was sufficient to cause death in normal course of life.”

On 01.10.2022, Dr. Amara Irum (PW-13) also conducted the post-mortem examination of the dead body of Shehnaz Bibi daughter of Khursheed Ahmad (deceased). Dr. Amara Irum (PW-13), on examining the dead body of Shehnaz Bibi daughter of Khursheed Ahmad (deceased) observed as under:-

“1- DESCRIPTION OF INJURIES: (including findings on dissection)

Following injuries were noted:

The dead body was burnt from head to toe approximately 85% of surface area of the body, skin was discolored and peel off from multiple sides due to severe burn, so no injury bruise and mark of violence cannot be detected.

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OPINION

After conducting thorough autopsy, I am of the opinion that cause of death in this case was completely burnt (85% surface area) body was sufficient to cause death in normal course of life.”

The prosecution also got Dr. Muhammad Uzair Israr (PW-9) examined who on 03.10.2022 was posted as Medical Officer at Sheikh Zayed Hospital, Rahim Yar Khan and on the same day had examined the appellant namely Muhammad Sultan son of Jind Wadda and observed the presence of burn injury on the body of the appellant namely Muhammad Sultan son of Jind Wadda and issued the Medico Legal Examination Certificate (Exh.PH/1).

7. On 20.06.2023, the learned Deputy Prosecutor General gave up the prosecution witnesses namely Muhammad Ferman, Ghulam Farid, Muhammad Irshad, Waqas Iqbal, Sadiq Mahmood constable and Makhna Gee constable as being unnecessary and closed the prosecution evidence after tendering in evidence the reports of the Punjab Forensic Science Agency, Lahore (Exh.PHH, Exh.PJJ, Exh.PJJ/1 and Exh.PJJ/2) and certified copies of documents (Exh.PKK/1-4).

8. After the closure of prosecution evidence, the learned trial court examined the appellant namely Muhammad Sultan son of Jind Wadda under section 342 Cr.P.C. and in answer to question *why this case against you and why the PWs have deposed against you*, the appellant namely Muhammad Sultan son of Jind Wadda replied that he was innocent and had been falsely involved in the case due to suspicion. The appellant namely Muhammad Sultan son of Jind Wadda further stated that he had not committed any offence and was not involved in the occurrence in any manner. The appellant namely

Muhammad Sultan son of Jind Wadda opted not to get himself examined under section 340(2) Cr.P.C. and did not adduce any evidence in his defence.

9. On the conclusion of the trial, the learned Judge, Anti-Terrorism Court, Bahawalpur Division, Bahawalpur, convicted and sentenced the appellant as referred to above.

10. The contention of the learned counsel for the appellant precisely was that the whole case was fabricated and false. The learned counsel for the appellant submitted that the prosecution remained unable to prove the facts in issue and did not produce any unimpeachable, admissible and relevant evidence. The learned counsel for the appellant further contended that the statements of prosecution witnesses were not worthy of any reliance. The learned counsel for the appellant also submitted that the appellant had no connection with the occurrence. The learned counsel for the appellant also argued that the recoveries were full of procedural defects, of no legal worth and value and result of fake proceedings. The learned counsel for the appellant finally submitted that the prosecution had totally failed to prove the case against the appellant beyond the shadow of a doubt.

11. On the other hand, the learned Deputy Prosecutor General along with the learned counsel appearing on behalf of the complainant of the case contended that the prosecution has proved its case beyond the shadow of any uncertainty by producing independent witnesses. The learned Deputy Prosecutor General along with the learned counsel appearing on behalf of the complainant of the case further argued that the appellant namely Muhammad

Sultan son of Jind Wadda was responsible for committing the *Qatl-i-Amd* of all the three deceased . The learned Deputy Prosecutor General along with the learned counsel appearing on behalf of the complainant of the case contended that there was no occasion for the prosecution witnesses to substitute the real offender with the innocent in this case. Lastly, the learned Deputy Prosecutor General along with the learned counsel appearing on behalf of the complainant of the case prayed for the rejection of the appeal.

12. We have heard the learned counsel for the appellant, the learned Deputy Prosecutor General, the learned counsel appearing on behalf of the complainant of the case and with their assistance, perused the record and evidence recorded during the trial.

13. In the instant unfortunate incident, three unfortunate women, namely Gul Naz Bibi, Shehnaz Bibi and Basra Bibi lost their lives after having been burnt to death. The deceased namely Gul Naz Bibi, Shehnaz Bibi and Basra Bibi suffered from massive burns and died painful and miserable deaths. The prosecution in order to prove the ocular account, got Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) examined. The prosecution witnesses namely Khursheed Ahmad (PW-5) and Amjad Iqbal (PW-6) were related to the deceased. The deceased namely Gul Naz Bibi was the wife of the prosecution witness namely Khursheed Ahmad (PW-5) and the deceased namely Shehnaz Bibi was the daughter of the prosecution witness namely Khursheed Ahmad (PW-5) whereas the deceased Basra Bibi was the sister of Gul Naz Bibi (deceased). The prosecution witness namely Amjad Iqbal (PW-6) is the maternal nephew of Khursheed Ahmad (PW-5). It

is also a fact that the other prosecution witness namely Muhammad Asif (PW-7) was not even related to either the deceased or to the prosecution witnesses namely Khursheed Ahmad (PW-5) and Amjad Iqbal (PW-6). More important is the fact that the appellant was the estranged husband of Shehnaz Bibi (deceased) and in this manner was very well known to all the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7). It is also a fact that the place of occurrence was the shop of Khursheed Ahmad (PW-5), constructed within the boundary of the house of Khursheed Ahmad (PW-5). All the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) explained their presence at the place of occurrence categorically. We have noted that all the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7), in a very natural and forthright manner, narrated the occurrence and gave each and every feature of the same with consistency. The presence of the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) at the place of occurrence was quite probable and natural. As mentioned above, the occurrence in the present case took place inside the shop of Khursheed Ahmad (PW-5) constructed within the boundary of the house of Khursheed Ahmad (PW-5). All the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) explained that on the day of occurrence, they were attracted to the place of the occurrence on the hue and cry of the deceased women and were present at the place of occurrence, at the time of occurrence. All the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) were cross-examined at length with regard to their arrival at the

place of occurrence and all the said prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) gave consistent and unswerving evidence in this regard. During cross-examination, Khursheed Ahmad (PW-5) was questioned with regard to him being attracted to the place of occurrence and Khursheed Ahmad (PW-5) explained that when he saw the appellant carrying a bottle of petroleum with him going towards his house, he immediately not only followed him but also raised hue and cry and stated as under:-

“ As I saw accused Sultan passing me at Pull Gharib Shah holding bottle of petrol with him, I made hue and cry. ”

Similarly, Muhammad Asif (PW-7) also explained during cross-examination that as he was going towards the house of Khursheed Ahmad (PW-5) for purchase of certain grocery items, he not only saw the appellant carrying a bottle of petroleum in his hand present inside the shop of Khursheed Ahmad (PW-5) but was also attracted to the said shop after hearing hue and cry and stated as under:-

“I was already in the way towards the shop of complainant for purchasing grocery item from Northern side, when I heard hue and cry. ”

It is also a fact that after the incident Abdul Kareem, Inspector (PW-21), the Investigating Officer of the case, collected from the place of the incident the brown colored, wet, half burnt, '*Dupatta*' (P-7), one pair of shoe (P8/1-2) belonging to Gul Naaz (deceased) and also took into possession two burnt packets of milk '*Tarang*' (P9/1-2), two burnt packets of cigarettes (P10/1-2), one burnt box of candies (P11), one burnt packet of *Lays chips* (P12), burnt biscuits *Zeera* (P13), burnt pampers of zero size (P14), one burnt packet of

Vital tea (P15), one burnt packet of *Nimko* (P16), burnt packet of *Mehndi* (P17) and burnt thread roles (P18) ,one purple color burnt iron Pipe with length of 2 feet (P25) , the burnt cot (P26) with length of 4 feet and width 2.6 feet and the burnt pillow (P27) from said place of the incident proving not only the place of incident as being a shop where the three deceased women were present prior to the incident but also proving that the appellant had used petroleum to commit the dastardly murders of the three deceased women. The place of occurrence was further established by the rough site plan of the place of occurrence (Exh. PEE) as prepared by Abdul Karim, Inspector (PW-21), the Investigating Officer of the case and the scaled site plan of the place of occurrence (Exh. PBB) as prepared by Muhammad Rafique Tracer (PW-18). The perusal of the said rough site plan of the place of occurrence (Exh. PBB) as prepared by Abdul Karim, Inspector (PW-21), the Investigating Officer of the case and the scaled site plan of the place of occurrence (Exh. PEE) as prepared by Muhammad Rafique Tracer (PW-18) reveals that the places where the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) were present ,have been clearly marked in the same and the places where the deceased had received the injuries at the hands of the appellant have also been marked in the said site plans. The house of Khursheed Ahmad (PW-5) is clearly marked in the rough site plan of the place of occurrence (Exh. PEE) as prepared by Abdul Karim, Inspector (PW-21), the Investigating Officer of the case and the scaled site plan of the place of occurrence (Exh. PBB) as prepared by Muhammad Rafique Tracer (PW-18) and it has been shown that the shop where the incident took place was part of the house of Khursheed Ahmad (PW-5) . As the occurrence had taken place inside the shop of Khursheed Ahmad (PW-5),

which shop was part of the house of Khursheed Ahmad (PW-5) , hence the witnessing of the occurrence by the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7), cannot be put into the question in the absence of any circumstance necessitating raising of any doubt over the presence of the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) at the place of occurrence, at the time of occurrence. The august Supreme Court of Pakistan in the case of “GHULAM ALI and another versus THE STATE” (2002 SCMR 1205) held as under:-

“As reflected from the ocular account the occurrence had taken place in front of main gate of the house of the complainant. They are natural witnesses and their presence at the place of incident cannot be doubted in any manner.”

The defence failed to prove the fact that the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) had no reason for their arrival at the place of occurrence rather during the course of the recording of evidence, the reason for the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) to be present at the place of occurrence was proved, therefore, their arrival at the place of occurrence and them witnessing the same cannot be looked at with any degree of doubt. During the cross-examination, the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) remained consistent with regard to the sequence of the occurrence and also explained their arrival at the place of occurrence, prior to the occurrence. The prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-

7) were subjected to extensive cross-examination but the defence had failed to make any crack in their deposition and the veracity of their statements was established. Hence, in view of the above facts, the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7), by no stretch of the imagination, can be declared as chance witnesses. Moreover, there is no such material available on record that would indicate the substitution of the appellant in the case with the real culprit, rather the appellant was married to Shahnaz Bibi (deceased), the daughter of Khursheed Ahmad (PW-5) and therefore, there did not exist any reason for the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) to have falsely involved the appellant. Substitution is a phenomenon of a rare manifestation because even the interested witnesses would not normally allow the real culprit for the murder of their relations to be let off by involving an innocent person. In this context, reference can usefully be made to the case of Irshad Ahmad and others v. The State and others (PLD 1996 SC 138). The appellant namely Muhammad Sultan has not been able to establish any animosity of the prosecution witnesses for his false involvement in the case. Prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7), in a forthright manner, held the appellant namely Muhammad Sultan responsible for the murders of Gul Naz Bibi (deceased), Shehnaz Bibi (deceased) and Basra Bibi (deceased) and that too by putting them on fire. There is no evidence on record that the said prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) were motivated by any enmity to depose against the appellant. We have scrutinized the evidence of the prosecution witnesses namely Khursheed

Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) and find that they proved themselves to be truthful witnesses and implicit reliance can be placed upon their statements.

14. Furthermore, as mentioned above, the occurrence in question had admittedly taken place in broad daylight at **12.30 p.m on 30.09.2022** and the same, therefore, could not have gone un-witnessed nor could have the culprit escaped unobserved. As it was a broad daylight occurrence, the question of misidentification of the appellant namely Muhammad Sultan son of Jind Wadda does not even arise. It is also a fact of the prosecution case that there was nothing in the line of sight of the prosecution witnesses namely Khursheed Ahmad (PW-5) , Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) which could have obstructed the view of the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) and prevented them from witnessing the appellant namely Muhammad Sultan son of Jind Wadda committing occurrence. Furthermore, as mentioned above, the appellant was married to Shehnaz Bibi (deceased), the daughter of Khursheed Ahmad (PW-5) and, thus, it would not have been difficult for the prosecution witnesses namely Khursheed Ahmad (PW-5) , Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) to identify the present appellant namely Muhammad Sultan son of Jind Wadda. Reliance in this regard is placed on the case of “Muhammad Farhan Alias Irfan Versus The State” (2021 S C M R 488) wherein the august Supreme Court of Pakistan has held under:-

“5. The witnesses are closely related; the complainant lost his brother and a nephew related in no less degree with Muhammad Babar (PW-13) and Muhammad Waleed

(PW-14) being father and brother, callously done to death in the midst of city during broad daylight, leaving no space to admit any hypothesis of substitution by the witnesses. Death of Malik Irfan and Arshad alias Pehlwan, nominated in the crime report alongside the appellant on the day one, while resisting a police encounter goes a long way to implicate the appellant as being a comrade in the crime.”

15. We have also appreciated the fact that the occurrence in this case took place at about **12.30 p.m on 30.09.2022** and was reported by the complainant namely Khursheed Ahmad (PW-5), immediately. According to the prosecution evidence, the written application (Exh. P.C.) of Khursheed Ahmad (PW-5) was presented to Muhammad Aslam, SI (PW-23) at the place of occurrence, on the day of the occurrence at about **03.00 p.m.** and thereafter the formal F.I.R (Exh.PB) was got registered at the Police Station on the same day at **03.30 p.m** by Sajid Mahmood Hassan, ASI (PW-3) . Thus, it is apparent that the written application (Exh. P.C.) of Khursheed Ahmad (PW-5) was submitted immediately and the formal F.I.R (Exh.PB) was registered with remarkable promptitude, especially when Khursheed Ahmad (PW-5) , the complainant of the case, had suffered the trauma of the death of his wife namely Gul Naz Bibi (deceased) at the hands of the appellant namely Muhammad Sultan son of Jind Wadda and had also suffered the trauma of witnessing the burning of Shehnaz Bibi (deceased) , the daughter of Khursheed Ahmad (PW-5) and the burning of Basra Bibi (deceased), the sister in-law of Khursheed Ahmad (PW-5) at the hands of the appellant. Khursheed Ahmad (PW-5) , not only named the appellant namely Muhammad Sultan son of Jind Wadda but also mentioned each and every minor as well as a material fact of the incident in his written application (Exh. P.C.), which of course, excludes the possibility of deliberation or consultation regarding the false

implication of the appellant namely Muhammad Sultan son of Jind Wadda in the instant case. The essential features of the occurrence have been elaborately explained in the written application (Exh. P.C.) of Khursheed Ahmad (PW-5). The promptitude in lodging of the F.I.R. also corroborates the case of the prosecution as against the appellant namely Muhammad Sultan son of Jind Wadda. This promptitude in reporting the matter to the police also establishes the presence of the witnesses at the place of occurrence, at the time of occurrence and supports their narrative. Not only the written application (Exh.PC) was submitted with promptitude but the statements under section 161 of the Code of Criminal Procedure, 1898 of the prosecution witnesses namely Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) were also recorded immediately. During the course of the trial, it was proved that the written application (Exh. PC.) of Khursheed Ahmad (PW-5), upon the basis of which the formal F.I.R (Exh.PB) was registered, was a genuine document and was made spontaneously, naturally and contained the true facts, devoid of any manipulation. In this regard, reference is made to the judgment in the case titled as “Muhammad Waris v. The State” (2008 SCMR 784) wherein the august Supreme Court of Pakistan was pleased to observe as under:--

“The names of the said two eye-witnesses could not have been mentioned in such a promptly lodged F.I.R. if they had not been with the deceased persons at the time of their death.”

Reliance is also placed on the case of MUHAMMAD ARSHAD Versus The State (2020 S C M R 2025) wherein it has been held as under:-

“There is no denial to this fact that the instant occurrence has taken place in broad daylight in which one person was done to death in a brutal manner whereas 02 women folk were given severe injuries. The crime report was lodged with promptitude, although the inter-se distance between the place of occurrence and the police station is 10-KM. The facts and figures narrated above, rules out

any possibility of deliberation and consultation. Further that there is only single accused nominated in the crime report which shows the fairness of the prosecution which normally is against the prevalent custom in our society.”

Reliance is also placed on the case of Noor Sultan and others Versus The State (2021 S C M R 176) wherein it has been held as under:-

“The instant occurrence has taken place on 28.02.2020 at 6.15 p.m. while the matter was reported to the police within 2.15 hours whereas inter-se distance between the place of occurrence and police station is 16 kilometers. Promptness in reporting the matter to the police reflect that there is no chance of any consultation or deliberation at the part of prosecution.”

Reliance is also placed on the case of Shaheen Ijaz Alias Babu Versus The State (2021 S C M R 500) wherein it has been held as under:-

“petitioner's nomination in a broad daylight incident by resident witnesses hardly admits a space to entertain any hypothesis of mistaken identity or substitution. Prompt recourse to law straight at the police station excludes every possibility of deliberation or consultation.”

Reference is also made to the judgment in the case titled as “Muhammad Aslam v. The State” (2012 SCMR 593) wherein the august Supreme Court of Pakistan was pleased to observe as under:--

“F.I.R. in the present case was recorded with a promptitude and in such circumstances prosecution has been able to prove the case against the appellant beyond any shadow of doubt.”

16. The medical evidence produced by the prosecution in the case, proves that all the three deceased died due to being set on fire by the appellant namely Muhammad Sultan son of Jind Wadda. The medical evidence fully supports the ocular account. On 30.09.2022, Dr. Sara Arshad (PW-11) conducted the post-mortem examination of the dead body of Gul Naz wife of Khursheed Ahmad (deceased) and opined that the whole dead body was burnt massively

and the deceased died due to the said burning. Similarly, on 30.09.2022, Dr. Maria Ghaffar (PW-12) examined Basra Bibi (then injured later deceased) as well as Shehnaz Bibi (then injured later deceased) and Dr. Maria Ghaffar (PW-12) found presence of massive burns on the bodies of Basra Bibi (then injured later deceased) as well as Shehnaz Bibi (then injured later deceased) at the time of their examinations by her. On 01.10.2022, Dr. Amara Irum (PW-13) conducted the post-mortem examinations of the dead bodies of Basra Bibi wife of Akbar (deceased) as well as Shehnaz Bibi daughter of Khursheed Ahmad (deceased) and opined that both the women had died due to the massive burns they had received. As mentioned above, the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) saddled the appellant with the responsibility of causing the said fatal injuries to Gul Naz wife of Khursheed Ahmad (deceased), Shehnaz Bibi daughter of Khursheed Ahmad (deceased) and Basra Bibi wife of Akbar (deceased). The opinions of Dr. Sara Arshad (PW-11) and Dr. Amara Irum (PW-13) with regard to the time which elapsed between the receiving of the injuries by the deceased and their deaths and the time which elapsed between the deaths of the deceased and the post mortem examinations of the dead bodies of the three deceased also offers further corroboration of the statements of the prosecution witnesses namely Khursheed Ahmad (PW-5) , Amjad Iqbal (PW-6) and Muhammad Asif (PW-7). In view of the above discussion, it is ascertained and proved that the intent of the appellant namely Muhammad Sultan son of Jind Wadda was to cause death of the three women and that he is guilty of *Qatl-i-Amd* of the deceased namely Gul Naz wife of Khursheed Ahmad (deceased), Shehnaz Bibi

daughter of Khursheed Ahmad (deceased) and Basra Bibi wife of Akbar (deceased) and that too by burning them to deaths.

17. We have also noted that the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) also proved the motive which prevailed with the appellant namely Muhammad Sultan son of Jind Wadda for committing the murders of the three women namely Gul Naz wife of Khursheed Ahmad (deceased), Shehnaz Bibi daughter of Khursheed Ahmad (deceased) and Basra Bibi wife of Akbar (deceased). The motive of the incident as narrated by the prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) was that the appellant was annoyed by the fact that Shehnaz Bibi (deceased), his wife, had left his house along with the children and had also filed a suit regarding her claims. During the course of cross-examination, Khursheed Ahmad (PW-5) also explained that the appellant had been threatening his daughter and already two cases had been registered against the appellant with regard to the said threats and stated as under:-

“ I reported the matter to police regarding extending threats by accused Sultan to us prior to instant occurrence and two F.I.Rs were registered against him in this regard.”

The prosecution also produced the certified copy of the suit (Exh.PKK) as filed by Shehnaz Bibi (deceased) as against the appellant, which suit was filed on 03.01.2022 and was pending when the incident took place and was decided only on 30.05.2023. The prosecution witnesses namely Khursheed Ahmad (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) successfully

proved that it was the appellant who had the motive to commit the murders of the three women.

18. We have also noted that a video footage contained in a Universal Serial Bus (USB) storage device (P-21) was also taken into possession by the Investigating Officer of the case on 12.10.2022, which video footage showed the appellant namely Muhammad Sultan son of Jind Wadda admitting to his guilt, however, Abdul Kareem Inspector (PW-21), the Investigating Officer of the case, admittedly did not send the Universal Serial Bus (USB) storage device (P-21) having stored in it the statement of the appellant to the Punjab Forensic Science Agency, Lahore for analysis, therefore, in absence of the report of the Punjab Forensic Science Agency, Lahore declaring the said video footage to be unedited and free from any manipulation, the said video footage as stored in the Universal Serial Bus (USB) storage device (P-21) cannot be considered as admissible evidence as held in the case of “*Asfandiyar and another v. Kamran and another*” (2016 SCMR 2084).

19. We have also noted that the appellant namely Muhammad Sultan son of Jind Wadda has been convicted and sentenced for the commission of offence under section 7 (a) of the Anti-terrorism Act, 1997, however, we have found that the prosecution did not prove that the appellant namely Muhammad Sultan son of Jind Wadda had committed offence under section 7 (a) of the Anti-terrorism Act, 1997. Undeniably, it is an admitted fact that provisions of Anti-terrorism Act, 1997 are co-related and ancillary to the substantive offence, which in all fairness is the provision of section 302, P.P.C. The gravity of said substantive offence can lead the court to the conclusion

whether the provisions of Anti-terrorism Act, 1997 are attracted or not. The Anti-Terrorism Act, 1997 is a special law enacted with a special intent and purpose, which can be gathered from the bare reading of Preamble of the said Act. It is a principle of legislation that the preamble of any enactment is always considered as the *grundnorm* of the legislation, which expresses the postulates to attract the said provision of the enactment according to its scope of legislation. As stated above, the Anti-terrorism Act, 1997, is a special enactment and a special enactment needs to be taken in perspective of its own object. Any departure from the same would be a negation of its object and spirit. A preamble of a statute explains the very purpose and underlying philosophy behind the enactment. To better understand the scheme of Anti-terrorism Act, 1997, it would be in order to reproduce the Preamble of the Act, which reads as under:-

"An act to provide for the prevention of terrorism, sectarian violence and for speedy trial of heinous offences;

Whereas it is expedient to provide for the prevention of terrorism, sectarian violence and for speedy trial of heinous offences and for matters connected therewith and incidental thereto;"

A bare perusal of the Preamble shows that the basic purpose behind the enactment of the Anti-terrorism Act, 1997, was to prevent, (i) terrorism, (ii) sectarian violence, and (iii) for speedy trial of heinous offences. The word "terrorism" has been given the same meaning as assigned in section 6 of the Anti-terrorism Act, 1997, which reads as under:-

"6. Terrorism.---(1) In this Act, "terrorism" means the use or threat of action where:-

(a) the action falls within the meaning of subsection (2); and

(b) the use or threat is designed to coerce and intimidate or overawe the Government or the public or a section of the public or community or sect or a foreign government or population or an international organization or create a sense of fear or insecurity in society; or

(c) the use or threat is made for the purpose of advancing a religious, sectarian or ethnic cause or intimidating and terrorizing the public, social sectors, media persons, business community or attacking the civilians, including damaging property by ransacking, looting, arson or by any other means, government officials, installations, security forces or law enforcement agencies:

Provided that nothing herein contained shall apply to a democratic and religious rally or a peaceful demonstration in accordance with law.

(2) An "action" shall fall within the meaning of subsection (1), if it:-

(a) involves the doing of any thing that causes death;

(b) involves grievous violence against a person or grievous bodily injury or harm to a person;

(c) involves grievous damage to property including government premises, official installations, schools, hospitals, offices or any other public or private property including damaging property by ransacking, looting or arson or by any others means;

(d) involves the doing of any thing that is likely to cause death or endangers person's life;

(e) involves kidnapping for ransom, hostage-taking or hijacking;

(ee) involves use of explosive by any device including bomb blast 2[or having any explosive substance without any lawful justification or having been unlawfully concerned with such explosive;

(f) incites hatred and contempt on religious, sectarian or ethnic basis to strip up violence or cause internal disturbance;

(g) involves taking the law in own hand, award of any punishment by an organization, individual or group whatsoever, not recognized by the law, with a view to coerce, intimidate or terrorize public, individuals, groups, communities, government officials and institutions, including law enforcement agencies beyond the purview of the law of the land;

(h) involves firing on religious congregation, mosques, imambargahs, churches, temples and all other places or worship, or random firing to spread panic, or involves any forcible takeover of mosques or other places of worship;

(i) creates a serious risk to safety of the public or a section of the public, or is designed to frighten the general public and thereby prevent them from coming out and carrying on their lawful trade and daily business, and disrupts civic life;

(j) involves the burning of vehicles or any other serious form of arson;

(i) involves extortion of money ("bhatta") or property;

(l) is designed to seriously interfere with or seriously disrupt a communication system or public utility service;

(m) involves serious coercion or intimidation of a public servant in order to force him to discharge or to refrain from discharging his lawful duties;

(n) involves serious violence against a member of the police force, armed forces, civil armed forces, or a public servant;

(o) involves in acts as part of armed resistance by groups or individuals against law enforcement agencies; or

(p) involves in dissemination, preaching ideas, teachings and beliefs as per own interpretation on FM stations or through any other means of communication without explicit approval of the government or its concerned departments.]

(3) The use or threat of use of any action falling within subsection (2) which involves the use of firearms, explosive or any other weapon is terrorism, whether or not subsection (1)(c) is satisfied.

(3A) Notwithstanding anything contained in subsection (1), an action in violation of a convention specified in the Fifth Schedule shall be an act of terrorism under this Act.

(4) In this section "action" includes an act or a series of acts.

(5) In this Act, terrorism includes any act done for the benefit of a proscribed organization.

(6) A person who commits an offence under this section or any other provision of this Act, shall be guilty of an act of terrorism.

(7) In this Act, a "terrorist" means:-

(a) an individual who has committed an offence of terrorism under this Act, and is or has been concerned in the commission, preparation, 1[facilitation, funding] or instigation of acts of terrorism;

(b) an individual who is or has been, whether before or after the coming into force of this Act, concerned in the commission, preparation, 1[facilitation, funding] or instigation of acts of terrorism, shall also be included in the meaning given in clause (a) above.”

Section 6 of the Anti-terrorism Act, 1997 defines terrorist acts, section 7 of the Anti-terrorism Act, 1997 provides punishment for such acts whereas section 8 of the Anti-terrorism Act, 1997 prohibits acts intended or likely to stir up sectarian hatred mentioned in clauses (a) to (d) thereof. The word "sectarian" has been described as "pertaining to, devoted to, peculiar to, or one which promotes the interest of a religious sect, or sects, in a bigoted or prejudicial manner". However, the word "heinous offence" has not been described in the Anti-terrorism Act, 1997. In common parlance, "heinous offence" means an offence which is serious, gruesome, brutal, sensational in character or shocking to public morality and which is punishable under the laws of the land. A bare reading of the Anti-terrorism Act, 1997 reveals that

an Anti-Terrorism Court has been conferred jurisdiction not only to try all those offences which attract the definition of 'terrorism' provided by the Anti-terrorism Act, 1997 but also some other cases, which have been specified in Third Schedule of the Anti-terrorism Act, 1997 involving heinous offences which do not fall in the said definition of terrorism. The sole purpose of trying such offences by the Anti-Terrorism Court is for the speedy trial of such heinous offences, irrespective of the fact that they do not fall within the ambit of 'terrorism'. The august Supreme Court of Pakistan in the case of “*Ghulam Hussain v. The State*” (**PLD 2020 SC 61**), while elaborately discussing the scope and intent of the legislature behind the enactment of Anti-terrorism Act, 1997 , has held that "an act of 'terrorism' is not just a grave offence but it is a class and species apart and this class or species has to be understood in its true and correct perception and perspective otherwise every serious offence may be found by one Judge or the other to involve terrorism depending upon a subjective assessment of the potential of the act to create some sense of fear or insecurity in some section of the society as such an approach may not be wholesome as it may ultimately result in every case of a serious offence landing in a Special Court and thereby rendering the ordinary courts substantially redundant. The august Supreme Court of Pakistan declared in the case of “*Mumtaz Ali Khan Rajban and another v. Federation of Pakistan and others*” (**PLD 2001 SC 169**) that the subject matters of the Suppression of Terrorist Activities (Special Courts) Act, 1975 and the Anti-terrorism Act, 1997 , were "different" and their respective applicability was "governed by different criteria". The august Supreme Court of Pakistan further held that the "*distinction between cases of terrorism and cases of specified heinous offences not amounting to terrorism but triable by an Anti- Terrorism Court*

has already been recognized by this Court in the cases of Farooq Ahmed v. State and another (2020 SCMR 78), Amjad Ali and others v. The State (PLD 2017 SC 661) and Muhammad Bilal v. The State and others (2019 SCMR 1362)”. It has been clarified by the august Supreme Court of Pakistan that such specified heinous offences are only to be tried by an Anti-Terrorism Court and that court can punish the person committing such specified heinous offences only for the commission of those offences and not for committing terrorism because such offences do not constitute terrorism. The cases of the offences specified in entry No. 4 of the Third Schedule to the Anti-terrorism Act, 1997, are cases of those heinous offences which do not per se constitute the offence of terrorism but such cases are to be tried by an Anti-Terrorism Court because of their inclusion in the Third Schedule. In cases of heinous offences mentioned in entry No. 4 of the said Schedule, an Anti-Terrorism Court can pass a punishment for the said offence and not for committing the offence of terrorism. It may be pertinent to mention here that the offence of abduction or kidnapping for ransom under section 365-A, P.P.C. is included in entry No. 4 of the Third Schedule and kidnapping for ransom is also one of the actions specified in section 7(e) of the Anti-terrorism Act, 1997 but an ordinary case of abduction or kidnapping for ransom under section 365-A, P.P.C. is merely triable by an Anti-Terrorism Court but if kidnapping for ransom is committed with the design or purpose mentioned in clauses (b) or (c) of subsection (1) of section 6 of the Anti-terrorism Act, 1997, then such offence amounts to terrorism attracting section 7(e) of that Act. In the former case, the convicted person is to be convicted and sentenced only for the offence under section 365-A, P.P.C. whereas in the latter case, the convicted person is to be convicted both for the offence under section 365-A, P.P.C. as

well as for the offence under section 7(e) of the Anti-terrorism Act, 1997 . The same may also be said about the other offences mentioned in entry No. 4 of the Third Schedule to the Anti-terrorism Act, 1997 pertaining to "Use of firearms or explosives by any device, including bomb blast in a mosque, imambargah, church, temple or any other place of worship, whether or not any hurt or damage is caused thereby", "Firing or use of explosive by any device, including bomb blast in the court premises", "Hurt caused by corrosive substance or attempt to cause hurt by means of a corrosive substance" and "Unlawful possession of an explosive substance or abetment for such an offence under the Explosive Substances Act, 1908". Such distinction between cases of terrorism and other heinous offences by itself explains and recognizes that all heinous offences, howsoever serious, grave, brutal, gruesome, macabre or shocking, do not *ipso facto* constitute terrorism which is a species apart. The august Supreme Court of Pakistan in the case of "*Ghulam Hussain And Others Versus The State and Others*" (**P L D 2020 Supreme Court 61**) has held as under :-

“15. The resume of our legislative developments in the field of terrorism shows, as already observed in the case of Basharat Ali (supra), that with different laws and definitions of terrorist act or terrorism the emphasis has been shifting from one criterion to another including the gravity of the act, lethal nature of the weapon used, plurality of culprits, number of victims, impact created by the act and effect of fear and insecurity brought about or likely to be created in the society by the action. The last definition of a 'terrorist act' contained in section 6 of the Anti-Terrorism Act, 1997 squarely focused on the effect of fear and insecurity intended to be created by the act or actually created by the act or the act having the potential of creating such an effect of fear and insecurity in the society. It, however, appears that subsequently the legislature did not feel convinced of the aptness or correctness of that definition and resultantly the erstwhile definition of a 'terrorist act' contained in section 6 of the Anti-Terrorism Act, 1997 was repealed and a totally fresh and new definition of 'terrorism' was introduced through an amended section 6 of the Anti-Terrorism Act, 1997. The legislature had probably realized by then that an effect of an act may not always be a correct indicator of the nature of such an act as every crime, especially of violence against person or property, does create some sense of fear and insecurity in some section of the society and a definition of terrorism

based upon the magnitude or potential of an effect created or intended to be created or having a potential of creating would necessarily require a premature, speculative and imaginary quantification of the effect so as to determine the nature of the act in order to decide about the jurisdiction of a criminal court to try such an act. That surely was an unsure test and the result of such a premature, speculative and presumptive test could vary from court to court and from Judge to Judge reminding a legal scholar of the Star Chamber and the early days of a Court of Equity in England where equity was said to vary with the size of the Chancellor's foot. The new definition of 'terrorism' introduced through the amended section 6 of the Anti-Terrorism Act, 1997 as it stands today appears to be closer to the universally understood concept of terrorism besides being easier to understand and apply. The earlier emphasis on the speculative effect of the act has now given way to a clearly defined mens rea and actus reus. The amended clause (b) of subsection (1) of section 6 now specifies the 'design' and clause (c) of subsection (1) of section 6 earmarks the 'purpose' which should be the motivation for the act and the actus reus has been clearly mentioned in subsection (2) of section 6 and now it is only when the actus reus specified in subsection (2) of section 6 is accompanied by the requisite mens rea provided for in clause (b) or clause (c) of subsection (1) of section 6 that an action can be termed as 'terrorism'. Thus, it is no longer the fear or insecurity actually created or intended to be created or likely to be created which would determine whether the action qualifies to be termed as terrorism or not but it is now the intent and motivation behind the action which would be determinative of the issue irrespective of the fact whether any fear and insecurity was actually created or not. After this amendment in section 6 an action can now be termed as terrorism if the use or threat of that action is designed to coerce and intimidate or overawe the Government or the public or a section of the public or community or sect, etc. or if such action is designed to create a sense of fear or insecurity in the society or the use or threat is made for the purpose of advancing a religious, sectarian or ethnic cause, etc. Now creating fear or insecurity in the society is not by itself terrorism unless the motive itself is to create fear or insecurity in the society and not when fear or insecurity is just a byproduct, a fallout or an unintended consequence of a private crime. In the last definition the focus was on the action and its result whereas in the present definition the emphasis appears to be on the motivation and objective and not on the result. Through this amendment the legislature seems to have finally appreciated that mere shock, horror, dread or disgust created or likely to be created in the society does not transform a private crime into terrorism but terrorism as an 'ism' is a totally different concept which denotes commission of a crime with the design or purpose of destabilizing the government, disturbing the society or hurting a section of the society with a view to achieve objectives which are essentially political, ideological or religious. This approach also appears to be in harmony with the emerging international perspective and perception about terrorism. The international perception is also becoming clearer on the point that a violent activity against civilians that has no political, ideological or religious aims is just an act of criminal delinquency, a felony, or simply an act of insanity unrelated to terrorism. This metamorphosis in the anti-terrorism law in our country has brought about a sea change in the whole concept as we have understood it in the past and it is, therefore, of paramount importance for all concerned to understand this conceptual modification and transformation in its true perspective.

16. For what has been discussed above it is concluded and declared that for an action or threat of action to be accepted as terrorism within the meanings of section 6 of the Anti-Terrorism Act, 1997 the action must fall in subsection (2) of section 6 of the said Act and the use or threat of such action must be designed to achieve any of the objectives specified in clause (b) of subsection (1) of section 6 of that Act or the use or threat of such action must be to achieve any of the purposes mentioned in clause (c) of subsection (1) of section 6 of that Act. It is clarified that any action constituting an offence,

howsoever grave, shocking, brutal, gruesome or horrifying, does not qualify to be termed as terrorism if it is not committed with the design or purpose specified or mentioned in clauses (b) or (c) of subsection (1) of section 6 of the said Act. It is further clarified that the actions specified in subsection (2) of section 6 of that Act do not qualify to be labeled or characterized as terrorism if such actions are taken in furtherance of personal enmity or private vendetta.”

In the instant case we have noted that according to the prosecution witnesses namely Khursheed Ahmad (PW-5) , Amjad Iqbal (PW-6) and Muhammad Asif (PW-7) , the motive which prevailed with the appellant namely Muhammad Sultan son of Jind Wadda was that the appellant was annoyed by the fact that Shehnaz Bibi (deceased), his wife had left his house along with the children and had also filed a suit regarding her claims. None of the prosecution witnesses stated that the appellant namely Muhammad Sultan son of Jind Wadda *designed* to coerce and intimidate any section of the public or committed the act of murders of the deceased for purpose of advancing a religious, sectarian or ethnic cause , though it could be said that the act of the appellant did lead to developing a sense of fear and insecurity in the residents of the area. Only creating of sense of fear or insecurity in the society is not by itself terrorism, unless the motive itself is to create fear or insecurity in society and not when fear or insecurity is just a byproduct, a fallout or an unintended consequence of a crime and mere shock, horror, dread or disgust created or likely to be created in society, does not transform a crime into *terrorism*. Therefore, we have arrived at an irresistible conclusion that the appellant namely Muhammad Sultan son of Jind Wadda could not have been convicted for the offence made punishable under section 7(a) of the Anti-Terrorism Act, 1997.

20. For what has been discussed above, we have come to an irresistible and clear conclusion that the prosecution has proved beyond any shadow of doubt, through inspiring and truthful evidence; that the appellant namely Muhammad Sultan son of Jind Wadda committed the *Qatl-i-Amd* of Gul Naz Bibi (deceased) , Shehnaz Bibi (deceased) and Basra Bibi (deceased). We have also arrived at the conclusion that the appellant namely Muhammad Sultan son of Jind Wadda does not deserve any leniency in the matter of the sentences of death awarded to him under section 302 (b) P.P.C. In this regard, reliance is placed upon the case of “*Tariq Iqbal Alias Tariq Versus The State (2017 S C M R 594)* . In view of the conclusions drawn by us, the Criminal Appeal No. 358-J of 2023 of 2023 as lodged by the appellant namely Muhammad Sultan son of Jind Wadda is *partly allowed* and the conviction and sentences of the appellant namely Muhammad Sultan son of Jind Wadda for the offence made punishable under section 7(a) of the Anti-Terrorism Act, 1997 are *set-aside*, however, the conviction and the sentence awarded to the appellant namely Muhammad Sultan son of Jind Wadda under section 302 (b) P.P.C. are **upheld and maintained**.

21. **Capital Sentence Reference No.02 of 2023** is answered in the **Affirmative** and the sentences of death awarded to Muhammad Sultan son of Jind Wadda under section 302 (b) P.P.C. are **Confirmed**.

(RAJA GHAZANFAR ALI KHAN)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for Reporting

Judge